



CHAPTER 11.

An Act to lower from fifty years to forty years the age which blind persons must have attained in order to be entitled to old age pensions under the Old Age Pensions Act, 1936; and to amend the law with respect to the provision of assistance in relation to such persons by local authorities. A.D. 1938.
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[30th March 1938.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. The age which a blind person must have attained in order to be entitled to receive an old age pension under the Old Age Pensions Act, 1936, shall be forty years instead of fifty years, and accordingly section two of that Act shall have effect as if, in paragraph (a) of subsection (1) of that section, for the word "fifty" there were substituted the word "forty," and as if, in paragraph (b) of that subsection, for the word "thirty" there were substituted the word "twenty."

Lowering of age at which non-contributory old age pensions may be paid to blind persons.
 26 Geo. 5. & 1 Edw. 8. c. 31.

2.—(1) For subsection (1) of section two of the Blind Persons Act, 1920, (hereafter in this Act referred to as "the principal Act") there shall be substituted the following subsections :—

Duty of local authorities to promote welfare of blind persons.
 10 & 11 Geo. 5. c. 49.

"(1) It shall be the duty of the council of every county or county borough to make arrangements for promoting the welfare of blind

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persons ordinarily resident in the area of the council, and the things which such a council may do in the performance of their said duty shall include the provision and maintenance, or the making of contributions towards the provision and maintenance, of workshops, hostels, homes or other places (whether in or outside the area of the council) for the reception of blind persons, and any other things the doing of which appears to the council to be desirable for the purpose of the performance of that duty.

In determining, in the case of any blind person, whether or not, or to what extent, to provide financial assistance under the preceding provisions of this subsection, the council shall take into account not only the needs of the blind person, but also the needs of any members of the household of which the blind person is a member who are dependent on him, and the rules laid down in paragraphs (a) to (e) of subsection (3) of section thirty-eight of the Unemployment Act, 1934 (which require certain assets of the person concerned to be disregarded), shall be complied with in computing the resources of any person in order to determine his needs for the purposes of this subsection.

24 & 25
Geo. 5. c. 29.

(1A) The council of any county or county borough may pay, or contribute to the payment of, any expenses payable in connection with the funeral of a person who, at the time of his death, was a blind person ordinarily resident in the area of the council, or who at the time of his death was a member of the household of which such a blind person as aforesaid was at that time a member and was dependent on him."

(2) Any assistance which after the commencement of this Act could, apart from this subsection, be provided either by way of poor relief or by virtue of section two of the principal Act, not being either assistance in an institution or medical assistance, shall be provided exclusively by virtue of that section and not by way of poor relief.

3.—(1) Where, during an appropriate quinquennial period, any assistance is, by virtue of section two of the principal Act, provided by a council in England (hereinafter referred to as “the assisting council”) in the case of a blind person who, within the five years immediately preceding that quinquennial period, has been ordinarily resident for the requisite period in the area or in each of the areas of some other council or councils in England having functions under the said section, then, unless the area of the assisting council is the area in England in which the blind person was last ordinarily resident for the requisite period within the said five years, the amount of any expenditure on the part of the assisting council which is specifically attributable to the provision of the said assistance by that council shall be a debt due to them from the other council or, as the case may be, from that one of the other councils in whose area the blind person was last ordinarily resident for the requisite period within the said five years.

A.D. 1938.

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Recovery of
cost of
assistance
by one Eng-
lish local
authority
from
another.

In this subsection the expression “appropriate quinquennial period” means, in relation to a blind person, any period of five consecutive years beginning either on the first day after the commencement of this Act on which any assistance is, by virtue of section two of the principal Act, provided in his case by a council in England, or on the expiration of five, or an exact multiple of five, years from the beginning of the said day; and the expression “requisite period” means a period of twelve or more consecutive months.

(2) If any dispute arises on the question whether or not any sum is recoverable from a council by virtue of this section, or as to the amount of any sum so recoverable, the dispute shall, unless the parties otherwise agree, be referred for determination to the Minister of Health.

Where any dispute is referred under this subsection to the Minister of Health, then at any stage of the proceedings the Minister may, and, if so directed by the High Court, shall, state in the form of a special case for the decision of the Court any question of law arising on the reference, but, save as aforesaid, the decision of the Minister shall be final.

(3) Subsection (7) of section two of the principal Act (which determines for the purposes of that section the

A.D. 1938. — area in which a blind person is to be deemed to be ordinarily resident while an inmate of an institution for the blind) shall have effect as if the reference in that subsection to the purposes of that section included a reference to the purposes of this section.

Provisions as to blind persons employed at institutions in Scotland. 4. Section two of the principal Act shall have effect, and be deemed always to have had effect, as if at the end of subsection (7) thereof the following words were added:—"and a blind person who, after the commencement of this Act, enters into employment at any such institution situated in Scotland, and who immediately before so doing was ordinarily resident in any area in Scotland, shall be deemed to be ordinarily resident in that area so long as he continues to be employed at the institution or while he is in receipt of a superannuation allowance granted by the institution on his retiral from employment thereat."

Interpretation. 5. In the principal Act and in this Act the expression "blind person" means a person so blind as to be unable to perform any work for which eyesight is essential; and in this Act the expression "medical assistance" includes the supply of medicine.

Short title, citation, commencement and extent. 6.—(1) This Act may be cited as the Blind Persons Act, 1938, and the principal Act and this Act may be cited together as the Blind Persons Acts, 1920 and 1938.

(2) This Act shall come into operation on the first day of April nineteen hundred and thirty-eight.

(3) This Act shall not extend to Northern Ireland.

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